EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

DECISION

Application no. 74435/14
Panagiotis KALFAGIANNIS and POSPERT
against Greece

The European Court of Human Rights (First Section), sitting on 9 June 2020 as a Chamber composed of:

Ksenija Turković, *President,*
Linos-Alexandre Sicilianos,
Aleš Pejchal,
Armen Harutyunyan,
Pere Pastor Vilanova,
Tim Eicke,
Jovan Ilievski, *judges,*

and Renata Degener, *Deputy Section Registrar,*

Having regard to the above application lodged on 18 November 2014,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicants,

Having regard to the decision of the President of the Section to grant leave to the European Broadcasting Union to intervene as a third party in the written procedure (Article 36 § 2 of the Convention and Rule 44 § 3 of the Rules of Court),

Having considered the applicants' and the third party's request that an oral hearing be held in the case and having decided on 9 June 2020 that, in view of the materials before it, an oral hearing was not necessary,

Having deliberated, decides as follows:

THE FACTS

1. The applicants are Mr Panagiotis Kalfagiannis, a Greek national born in 1958, and POSPERT, an association registered under Greek law. They were represented before the Court by Mr D. Perpataris, Mr K. Tokatlidis and Ms D. Kemerli, lawyers practising in Athens.

2. The Greek Government ("the Government") were represented by their Agent's delegates, Ms E. Tsaousi and Ms G. Papadaki, legal counsellor and senior advisor respectively at the State Legal Council.

3. The facts of the case, as submitted by the parties, may be summarised as follows.

A. Background of the case

4. The first applicant was born in 1958 and lives in Athens. He is a former employee (financial administrator) of Elliniki Radiofonia Tileorasi S.A. ("ERT") and President of the Management Board of POSPERT, the second applicant, which is a federation of trade unions which represent employees in the public and private television and radio sectors in Greece. Article 2 of the second applicant's statute lists among its purposes, to unite all trade unions of media employees in order to collectively study, safeguard and promote the work and financial, social, cultural and professional interests of their members, to contribute to the improvement and development of the Greek radio and television service and to defend the social and national character of the public radio and television broadcaster. In order to achieve the above-mentioned aims, the second applicant uses the means described in Article 3 of its statute, which include observing the correct implementation of the Constitution and of labour law provisions, and providing legal assistance wherever possible to resolve the problems encountered by its members.

5. ERT, the Greek public service broadcaster, was founded by Law no. 1730/1987 as a public corporation under private law. Under Article 1 of that law, ERT is controlled and supervised by the State, has administrative and financial autonomy and is subject to public scrutiny. Its objective is to organise, exploit and develop State radio and television, and thereby contribute to informing, educating and entertaining the Greek people. It is obliged to cover the whole Greek territory and to comply with, *inter alia*, the principles of freedom, democracy, impartiality, pluralism, respect for individuals, quality of the programmes offered and preservation of the Greek language, culture and traditions. It comprises two national channels, three regional channels, a high-definition national channel, an international programme, two radio stations nationwide, nineteen regional radio stations, two international radio programmes for Greeks abroad and one website.

B. Closure of ERT

6. On 2 May 2010 the Eurogroup, jointly with the International Monetary Fund, agreed to provide financial assistance to Greece.

7. In its Fourth Review adopted in spring 2011, the Economic Adjustment Programme for Greece provided for the closure, merger or

consolidation of eleven large entities with 7,000 employees, "including existing asset management companies, construction companies and public television stations". Law no. 4002/2011 amended Law no. 3429/2005 by introducing a new Article 14B, which provided for the closure of ERT, or its split or merger by acquisition and/or establishment of new companies, by a joint decision of the Minister of Finance and the minister responsible for supervision of ERT.

8. The Council of the European Union, in its decision 2011/791/EU, held that Greece should adopt without delay ministerial decisions that would initiate the closure, merger or substantial downsizing of various entities, including ERT.

9. Appendix I of the Memorandum of Economic and Financial Policy, as approved by Law no. 4046/2012, provided that one of the fiscal measures pending after the actions taken in November 2011 was the issuance of ministerial decisions for the closure or merger of legal entities founded under public and private law.

10. Following a second review of the Economic Adjustment Programme for Greece in May 2013, the Greek Government undertook to speed up administrative reform in the public sector, including mandatory staff cuts amounting to 4,000 by the end of 2013 and 15,000 by the end of 2014. The programme's quantitative performance criteria included the mandatory reduction of 2,000 employees from the public sector by the end of September 2013.

11. On 11 June 2013 a legislative decree (*πράξη νομοθετικού περιεχομένου*) dated 10 June 2013 was published in the Government Gazette. It referred to the "extraordinary instance of a very urgent and unforeseen need to address the very urgent matter of implementing Article 14B of Law no. 3429/2005, as amended by Laws nos. 4046/2012 and 4093/2012, which constituted a prerequisite measure in the context of the approved Medium-Term Fiscal Strategy Framework 2013-2016". It provided that, if an entity were closed down, a ministerial decision would regulate all matters related to the time of the closure, the transfer of its assets and liabilities, and staff contracts.

12. On 11 June 2013 the Minister of Finance issued ministerial decision no. 2/11-6-2013, closing down ERT. The preamble to the decision stated that ERT was a burden on the State budget and that it was imperative to establish a new organisation which would serve the democratic, social and cultural needs of society, as well as the need to ensure pluralism in the media. All television, radio and Internet activities would immediately stop and all contracts would be terminated with immediate effect. The staff would receive compensation for the termination of their contracts. The frequencies reserved to ERT would remain inactive until the establishment of the new organisation and until all of ERT's assets and liabilities had been transferred to the State.

13. On the same day, a little before midnight, police forces entered the premises of ERT and interrupted the transmission of its programmes. This resulted in a black screen, which later became known as "the ERT blackout". The issue was widely reported in the Greek and international media.

14. On 12 June 2013 the European Commission issued the following statement concerning the closure of ERT:

> "The European Commission has taken note of the decision by the Greek authorities to close down the Hellenic Broadcasting Corporation (ERT), a decision taken in full autonomy.
>
> The Commission has not sought the closure of ERT, but nor does the Commission question the Greek Government's mandate to manage the public sector. The decision of the Greek authorities should be seen in the context of the major and necessary efforts that the authorities are taking to modernise the Greek economy. Those include improving its efficiency and effectiveness of the public sector.
>
> The Commission understands the difficult situation of ERT staff and expects the announced dismissals to be carried out in full accordance with the applicable legal framework.
>
> The Commission supports the role of public broadcasting as an integral part of European democracy. The Treaty makes it clear that the governance and strategic choices on public service broadcasting lie with Member States. So while the Commission cannot prescribe Member States how to organise their public service broadcaster, we would like to highlight the role of public service broadcasters regarding European values in all economic circumstances, for the sake of media pluralism, media freedom and media quality and for the expression of cultural diversity. So we welcome the commitment of the Greek government to launch a media actor that fulfils the important role of public broadcasting and is financially sustainable."

C. Judicial proceedings

15. On 12 June 2013 the first applicant, in his capacity as former employee of ERT and President of the Board of the second applicant, and the second applicant pursuant to Article 2 of its statute, lodged an application with the Supreme Administrative Court for annulment of ministerial decision no. 2/11-6-2013. At the same time, they applied for suspension of the said ministerial decision and issuance of an interim order.

16. In their application for annulment the applicants argued that the ministerial decision shutting down ERT should be annulled for the following reasons: it was against Article 15 of the Constitution, which provided for the establishment of a public radio and television provider; it was against the Charter of Fundamental Rights stipulating the right to freedom of expression and Protocol no. 29 on the system of public broadcasting in EU Member States; it was against Article 10 of the Convention, in which the right to impart information through radio and television – and, therefore, through the establishment of a public radio and

television provider – was protected; it had not been signed by all the relevant ministers; the procedure followed had not been in accordance with law no. 3429/2005; it did not include full and detailed reasons; and lastly, it was against the proportionality principle, as provided for in Article 25 of the Constitution.

17. On 17 June 2013 the President of the Supreme Administrative Court issued a decision on the request for an interim order. He ordered the suspension of the ministerial decision shutting down ERT in so far as it concerned (a) the interruption of the transmission of radio and television programmes and operation of the website, and (b) the fact that the frequencies of ERT would remain inactive. He also ordered the relevant ministers to take any organisational measures necessary for the continuation of transmission of all programmes until the establishment of a new organisation which would serve the public interest, as provided for in ministerial decision no. 2/11-6-2013.

18. On 20 June 2013, the committee on suspensions of the Supreme Administrative Court confirmed the interim order of 17 June 2013. It further ordered the relevant ministers and the special manager to take all necessary measures, including hiring any necessary staff, to establish a transitional public radio and television entity as soon as possible. The transitional entity would be entrusted with transmitting the necessary radio and television programmes and operating the relevant website until the establishment of the new entity.

19. On 27 September 2013 the Plenary of the Supreme Administrative Court heard the case for annulment of the ministerial decision closing ERT. By its decision no. 1901/2014 of 24 May 2014, the Supreme Administrative Court dismissed the application for annulment. In particular, it held that it did not follow from the Constitution that the State was obliged to operate a public radio and television broadcaster. If, however, after having taken into account the financial situation of the State, the legislator decided to establish a public service broadcaster, it would have to be pluralistic, independent from any governmental or political influence, and operate based on the principles of objectivity and impartiality. In any event, the shutting down of ERT pursued a cause of public interest, namely the rationalisation of its operating costs through the creation of a new entity. In the meantime, the transitional entity was fully operational, with a regular level of organisation and staff, while at the same time the private channels continued operating under the supervision of the National Council of Radio and Television. Furthermore, the ministerial decision was provided for by law, namely by Article 14B of Law no. 3429/2005, as added by Law no. 4002/2011. The Charter of Fundamental Rights and Protocol no. 29 were not applicable to the circumstances of the present case, as the domestic authorities did not apply European Union law. As regards the arguments based on Article 10 of the Convention, the domestic court, referring to the Court's judgment in

Manole and Others v. Moldova (no. 13936/02, ECHR 2009 (extracts)), ruled that Article 10 of the Convention did not oblige the member States to establish a public radio and television provider, as long as there were other means of ensuring the quality and balance of the programmes. Turning to the proportionality of the measure, the Supreme Administrative Court held that, based on the reasons and elements adduced by the State concerning ERT's viewing rates, the sources of its income, the salaries paid compared to other channels of a similar size and the general financial data, the State had in principle justified its decision as to the suitability of the measure for the achievement of the aims pursued.

20. A minority of judges disagreed. According to them, it followed from the Constitution that a public service broadcaster was necessary as it served purposes that private radio stations and television companies did not. More specifically, the public service broadcaster provided independent and valid information to all regions of Greece in order to have informed and mature citizens, which was a necessary prerequisite for democracy. In addition, the public service broadcaster sought to show cultural programmes of high quality. The private broadcasters could not serve the above-mentioned purposes as they were more focused on profit and serving certain financial interests. They offered programmes of very low quality and pursued high viewing rates at the expense of quality and objectivity. In addition, they could suspend their operation at any time and for any reason. Therefore, the shutting down of the public service broadcaster without at the same time establishing a new equivalent one, which could legally take the place of the previous one in its obligations and rights and would be able to broadcast a full schedule of programmes based on the above-mentioned constitutional demands, resulted in a violation of Article 15 § 2 of the Constitution. In addition, the decision to shut down the public service broadcaster in order to rationalise its operating costs had not been a proportionate measure, as the Administration had proceeded without having examined any alternative milder measures that could have achieved the same aim. Moreover, the financial data presented for the first time before the Supreme Administrative Court could not be taken into account as they had not been available prior to the decision taken.

D. The transitional radio-television entity and the new radio-television entity

21. On 19 June 2013, in compliance with the interim order of the President of the Supreme Administrative Court, ministerial decision no. 5/19-6-2013 was issued. A special manager was appointed to oversee the transmission of radio and television programmes and the operation of the website, as well as the use of frequencies that had remained inactive until the establishment of the new radio and television entity.

22. On 10 July 2013 the transitional entity, named "Greek Public Television" («*Νέα Ελληνική Τηλεόραση*»), started broadcasting from different premises, as the premises from which ERT had been broadcasting were occupied by former employees.

23. Following unsuccessful negotiations with the trade unions of former ERT employees to continue providing their services during the transitional period, on 22 July 2013 an initial advertisement for the recruitment of 589 people was published. On 2 August 2013 the special manager published another advertisement for 1,453 people who would be offered a temporary contract of two months.

24. On 16 August 2013 Greek Public Television started broadcasting on a twenty-four hour basis. From 19 August 2013 it started broadcasting a complete schedule of television programmes, including news, information and sports programmes. On 23 September 2013 the transitional entity started radio broadcasting under the name "Greek Public Radio" and on 19 September 2013 the entity's website started operating.

25. On 26 July 2013 Law no. 4173/2013 was published, providing for the creation of "New Greek Radio, Internet and Television" (hereafter "NERIT"). According to the explanatory report of the law, it was imperative to create a new entity so as to have a public, rather than a governmental, radio and television entity. It stated that ERT had been under the "suffocating control of the State", and had been subject to various political interventions, especially as regards the hiring of staff and journalists, and compensation and salaries of members of the board. In general, it had been under political control in respect of its administration, its employees, its relationships with its providers and even its relationships with private radio and television companies. NERIT started broadcasting on 4 May 2014.

26. On 29 April 2015, the new ERT was established by Law no. 4324/2015 and NERIT was dissolved. The new ERT started broadcasting on 11 June 2015.

RELEVANT LEGAL FRAMEWORK AND PRACTICE

A. Constitution

27. The relevant provision of the Constitution, referring to the operation of the media, reads as follows:

Article 15

"...

2. Radio and television shall be subjected to the direct control of the State. The control and imposition of administrative penalties shall be the sole responsibility of the National Broadcasting Council, which is an independent authority as provided for by law. The direct control of the State, which also takes the form of a prior

authorisation regime, shall aim at the objective transmission, on equal terms, of information and news reports, as well as reports on works of literature and art; at ensuring the quality of the programmes as required by the social mission of radio and television and the cultural development of the country; and at respecting human values and protecting childhood and youth ...”

Article 44

“1. In extraordinary circumstances of urgent and unforeseeable need, the President of the Republic may, at the request of the Cabinet, issue legislative decrees. Such decrees shall be submitted to Parliament for ratification, as specified in paragraph 1 of Article 72, within forty days of being issued or within forty days of the convocation of a parliamentary session. Should such decrees not be submitted to Parliament within the above time-limits or should they not be ratified by Parliament within three months of their submission, they will henceforth cease to be in force ...”

B. Law no. 1730/1987

28. The relevant provisions of Law no. 1730/1987, by which ERT was founded, read as follows:

Article 2
Purpose and competencies

“1. The purpose of ERT S.A. is to organise, exploit and develop State radio and television, and contribute to (a) informing, (b) educating and (c) entertaining the Greek people. ERT S.A. shall not seek the acquisition of profit ...”

Article 3
General principles of broadcasting programmes and advertisements

“1. The broadcasts of ERT S.A. are inspired by the ideals of freedom, democracy, national independence, peace and friendship between peoples.

2. Radio and television programmes shall be governed by the principles of:

a. objectivity, completeness and timeliness of information;

b. pluralism;

c. high programme quality;

d. safeguarding the quality of the Greek language;

e. respect for people’s personality and privacy; and

f. preservation, promotion and dissemination of Greek culture and Greek traditions.”

C. Law no. 3429/2005

29. Article 14B of Law no. 3429/2005, as added by Law no. 4002/2011 and amended by legislative decree no. 31/2011 and by Law no. 4046/2012, provided for the possibility of closing or merging ERT, as well as other companies operating under private law that belonged to the State, if they

became a burden on the State budget directly or indirectly, or if they pursued similar aims, or in order to rationalise their operating costs.

D. Ministerial decision no. 2/11-6-2013 of the Minister of Finance

30. On 11 June 2013, the Minister of Finance issued a decision which provided for the immediate shutting down of ERT. Its relevant parts provided as follows:

> "The Minister of Finance, having regard to the following:
>
> ...
>
> 5. The fact that Greek Radio and Television (ERT SA) is a burden on the State budget and that it is imperative to rationalise the service, operation and functioning costs of public broadcasting by founding and forming a new organisation model, which shall serve the requirements of the Constitution, the democratic, social and cultural needs of society, as well as the need to ensure pluralism in the media;
>
> ...
>
> **Article 1**
>
> 1. Greek Radio and Television (ERT SA), which was founded by Law no. 1730/1987 (A 145) as a uniform entity, shall be closed down. In addition, the subsidiary companies founded by ERT SA shall also be closed down.
>
> 2. The transmission of radio and television programmes, the release of publications, the operation of websites as well as any other activity of ERT SA and its subsidiaries, shall be interrupted after the end of the regular programme schedule of 11 June 2013 and until the establishment of a new entity which shall serve the public interest in the context of observing the principles that are consistent with transparency and sound management within the competitive radio and television environment.
>
> **Article 2**
>
> ...
>
> 2. ...
>
> b. The frequencies of ERT SA shall remain inactive until the establishment of a new entity, when they shall be allocated to it automatically ...
>
> **Article 3**
>
> 1. The employment contracts of staff working in any way, such as regular and temporary staff or other staff, as well as any employment contracts with external or other associates of ERT SA and its subsidiaries, shall be terminated as from the publication of the present decision ..."

COMPLAINT

31. The applicants alleged, in particular, that the closure of the Greek public service broadcaster had violated their rights under Article 10 of the Convention.

THE LAW

32. The applicants complained that the closure of ERT had violated their right to receive and impart information as provided for in Article 10 of the Convention, which reads:

> "1. Everyone has the right to freedom of expression. This right shall include freedom to hold opinions and to receive and impart information and ideas without interference by public authority and regardless of frontiers. This Article shall not prevent States from requiring the licensing of broadcasting, television or cinema enterprises.
>
> 2. The exercise of these freedoms, since it carries with it duties and responsibilities, may be subject to such formalities, conditions, restrictions or penalties as are prescribed by law and are necessary in a democratic society, in the interests of national security, territorial integrity or public safety, for the prevention of disorder or crime, for the protection of health or morals, for the protection of the reputation or rights of others, for preventing the disclosure of information received in confidence, or for maintaining the authority and impartiality of the judiciary."

A. The parties' arguments

33. The Government submitted that Article 10 was not applicable to the case, because it did not place on member States an obligation to found and maintain a dual system of radio and television broadcasting, or an obligation to continue to operate an existing radio and television entity.

34. In addition, the Government maintained that following the interim order issued by the Supreme Administrative Court on 17 June 2013, a transitional entity had started operating on 10 July 2013 and it had provided a full schedule of programmes as from 19 August 2013 (see 24 above). That entity had later been replaced by NERIT, which had ensured the continuity of radio and television transmission. In any event, the new ERT had started operating on 11 June 2015. Having regard to the above-mentioned considerations, the applicants could not claim to be victims of a violation of Article 10 of the Convention and therefore, the application should be rejected as incompatible *ratione personae*.

35. Lastly, the Government argued that the application should be rejected as having been lodged outside of the six-month time-limit. In their view, the interruption of ERT's broadcasting had been resolved by the interim order issued by the Supreme Administrative Court. If the applicants considered that their rights deriving from Article 10 of the Convention had

continued to be violated after the establishment of the transitional entity and the new entity – an allegation that was neither submitted before the Supreme Administrative Court nor included in the application form – then they should have lodged their application with the Court within six months of the transitional entity starting to broadcast.

36. The applicants argued that the applicability of Article 10 could not be contested in the present case. Referring to the Court's case-law, they submitted that when the State had decided to put in place a system of public radio and television, it had been bound to comply with the requirements of Article 10 of the Convention.

37. As regards their victim status, the applicants argued that neither the transitional entity nor NERIT could be seen as independent and pluralistic public-service radio and television entities. In any event, they had not lost their victim status, as the Greek Government had never acknowledged the infringement of their rights under Article 10 of the Convention on account of the closure of ERT.

38. Lastly, as regards the time-limit within which the application had been lodged, the applicants maintained that they had pursued the relevant domestic measures in order to complain about the violation of their rights under Article 10 of the Convention and that they had lodged their applications within six months of the final domestic decision.

B. The Court's assessment

39. The Court reiterates firstly that in order to rely on Article 34 of the Convention, a person, non-governmental organisation or group of individuals must be able to claim to be a victim of a violation of the Convention. According to the Court's established case-law, the concept of "victim" must be interpreted autonomously and irrespective of domestic concepts such as those concerning an interest or capacity to act (see *Nencheva and Others v. Bulgaria*, no. 48609/06, § 88, 18 June 2013), even though the Court should have regard to the fact that an applicant was a party to the domestic proceedings (see *Aksu v. Turkey* [GC], nos. 4149/04 and 41029/04, § 52, ECHR 2012; *Micallef v. Malta* [GC], no. 17056/06, § 48, ECHR 2009; and *Bursa Barosu Başkanlığı and Others v. Turkey*, no. 25680/05, §§ 109-17, 19 June 2018).

40. The individual concerned must be able to show that he or she was "directly affected" by the measure complained of (see *Centre for Legal Resources on behalf of Valentin Câmpeanu* [GC], no. 47848/08, § 96, with further references, ECHR 2014). The same consideration applies to associations which, according to the Court's established case-law, will normally only be granted victim status if they have been directly affected by the measure in question (see *British Gurkha Welfare Society and Others v. the United Kingdom*, no. 44818/11, § 50, 15 September 2016; *Association*

des amis de Saint Raphaël et de Fréjus et autres v. France (dec.), no. 45053/98, 29 February 2000; *Dayras and Others and the association "SOS Sexisme" v. France*, (dec.), no. 65390/01, 6 January 2005; and *Grande Oriente d'Italia di Palazzo Giustiniani v. Italy (no.2)*, no. 26740/02, § 20, 31 May 2007). The Convention does not envisage the bringing of an *actio popularis* for the interpretation of the rights set out therein or permit individuals to complain about a provision of national law simply because they consider, without having been directly affected by it, that it may contravene the Convention (see *Aksu*, cited above, § 50, and *Burden v. the United Kingdom* [GC], no. 13378/05, § 33, ECHR 2008).

41. The Court also reiterates that, subject to the conditions set out in Article 10 § 2, journalists have a right to impart information. The protection of Article 10 extends to employed journalists and other media employees (see *Manole*, cited above, § 103). An employed journalist can claim to be directly affected by a general rule or policy applied by his employer which restricts journalistic freedom (see *Purcell and Others v. Ireland*, no. 15404/89, Commission decision of 16 April 1991, DR 70, p. 262). A sanction or other measure taken by an employer against an employed journalist can amount to an interference with freedom of expression (see *Fuentes Bobo v. Spain*, no. 39293/98, § 38, 29 February 2000). The Court has additionally held, referring to producers and editors, that a general policy can also affect media employees other than journalists (see *Manole*, cited above, § 106).

42. Turning to the circumstances of the present case, the Court notes that the Government have put forward various inadmissibility reasons, namely that the application is incompatible *ratione materiae*, that it is incompatible *ratione personae* and that it has been lodged outside the time-limit of six months. The Court does not consider it necessary to deal with all the inadmissibility grounds raised by the Government because it notes that the application is inadmissible on the following grounds.

1. The first applicant

43. The first applicant, who at the relevant time was employed by ERT as a financial administrator, complained of restrictions on his freedom of expression. His claim that his right to freedom of expression had been violated was twofold: he argued, on the one hand, that his right to impart information in his capacity as an ERT employee had been impeded, and on the other hand that his right to receive information as a citizen of the Hellenic Republic and a viewer of the programmes broadcast by ERT, had been impeded.

44. The Court notes that, in principle, the activities of a financial administrator are not directly relevant to the imparting of information or ideas in the context of a public broadcaster, and the first applicant has not provided any argument to the contrary. In this regard, the Court reiterates

that, in order for an applicant to be able to claim to be a victim of a violation of the Convention, there must be a sufficiently direct link between the applicants and the harm which they consider they have sustained on account of the alleged violation (see, among other authorities, *Gorraiz Lizarraga and Others v. Spain,* no. 62543/00, § 35, ECHR 2004-III). In the circumstances of the present case, the Court cannot discern how the first applicant's right to freedom of expression was interfered with on account of the closure of ERT, given that his activities were not linked to imparting information or ideas. Although the immediate termination of the contracts of all those who were employed in ERT inevitably affected the applicant's work, such work – unlike that of the journalists working in ERT – was not directly linked to the imparting of information or ideas.

45. The Court has held in *Manole* (cited above) that a general policy can also affect media employees other than journalists. However, the conclusion in that case was applicable to editors and producers, whose activities were directly relevant to the imparting of information or ideas, as they were directly engaged in the preparation of programmes (see the Court's conclusions in *Manole*, § 106). Having regard to the activities of the first applicant in the present case, that conclusion is not applicable to him and, therefore, the first part of his argument in respect of his victim status cannot be accepted by the Court.

46. The first applicant also argued that he enjoyed victim status because in his capacity as a citizen of the Hellenic Republic and a viewer of the programmes broadcast by ERT, his right to receive information had been interfered with. In this connection, the Court notes that the mere existence of legislation affecting all Greek citizens is not sufficient to establish the applicant's victim status (see *Dimitras and others v. Greece*, nos. 59573/09 and 65211/09, § 31). There must also be a direct link between the law in question and the obligations or effects weighing on the interested parties, which is not the case here. The mere fact that the applicant could no longer watch or listen to the programmes previously broadcast by ERT does not suffice to establish a direct link between the law shutting down the public broadcaster and the applicant.

47. The Court notes in this regard that the Supreme Administrative Court accepted the first applicant's status as a victim. However, this element alone is not decisive, as the notion of "victim" is interpreted autonomously in the Convention system (see the Court's case-law cited in paragraph 39 above). It follows that this part of the applicant's argument – that is, that the closure of ERT, comprising all of its radio stations and television channels and the website, as a general measure, had interfered with his right to receive information – does not suffice to establish his victim status.

48. It follows that the application is incompatible *ratione personae* with the provisions of the Convention in so far as the first applicant is concerned and must be dismissed in accordance with Article 35 § 4 of the Convention.

2. The second applicant

49. Turning to the victim status of the second applicant, the Court notes that it is a federation of trade unions which represent media employees in the public and private sectors. In this connection, the Court notes that the second applicant had legal standing before the domestic courts in the litigation concerning the subject matter of this case, which in itself is not decisive for the purpose of determining its "victim" status within the meaning of the Convention (see paragraph 39 above). Article 2 of the second applicant's statute lists among its purposes, to unite all trade unions of media employees in order to collectively study, safeguard and promote the work and financial, social, cultural and professional interests of their members, to contribute to the improvement and development of the Greek radio and television service and to defend the social and national character of the public radio and television broadcaster. In other words, the second applicant comprises a significant number of trade unions, the members of only some of whom had been working in ERT at the time it was closed down. Furthermore, it pursues aims which concern not only public but also private radio and television broadcasters.

50. In this regard the Court recalls that in order to satisfy the conditions of Article 34, applicants must be able to demonstrate that they themselves have been directly affected by the alleged breach of the Convention (see paragraph 40 above). In the present case the measures complained of do not affect the Convention rights of POSPERT under Article 10 of the Convention. In particular, the Court has not been apprised of any information that the second applicant used the public broadcaster as a means of expressing its views or sharing information. In order to establish its "victim" status, POSPERT has limited itself to invoking its statutory purposes which include the defence of the social and national character of the public radio and television broadcaster. However, the Court notes that the impact of the closure of ERT on the second applicant might have raised issues under Article 11 of the Convention, an article that has never been pleaded by the second applicant, neither before the domestic courts nor before this Court. In addition, the fact that POSPERT, a federation of trade unions, considers itself to be the guardian of the collective interests of its members — or even of the members of its members given that it unites trade unions— does not suffice to make it a victim within the meaning of Article 34 of the Convention (see *Manole and others v. Moldova* (dec.), no. 13936/02, 15 June 2004 and *Purcell and others,* cited above). Under those circumstances, the second applicant does not appear to have been "*directly affected*" by the measure in its own right.

51. It follows that the part of the application concerning the second applicant is also incompatible *ratione personae* with the provisions of the Convention within the meaning of Article 35 § 3.

52. Having regard to the above-mentioned conclusions, the application must be rejected in accordance with Article 35 § 4 of the Convention.

For these reasons, the Court, unanimously,

Declares the application inadmissible.

Done in English and notified in writing on 2 July 2020.

Renata Degener Deputy Registrar	Ksenija Turković President